

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Judith Le	Team: Squad #12	CCRB Case #: 201706610	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/13/2017 11:16 PM	Location of Incident: § 87(2)(b)	Precinct: 101	18 Mo. SOL 2/13/2019	EO SOL 2/13/2019	
Date/Time CV Reported Mon, 08/14/2017 11:46 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/14/2017 11:46 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Fechtmann	11145	954800	101 PCT
2. POM Edward Theriault	01773	937622	101 PCT
3. POM Matthew Zappia	04152	949824	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Javier Rios	20224	952167	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Edward Theriault	Abuse: Police Officer Edward Theriault threatened to damage § 87(2)(b)'s property.	§ 87(2)(b)
B.POM Brian Fechtmann	Force: Police Officer Brian Fechtmann used physical force against § 87(2)(b)	§ 87(2)(b)
C.POM Brian Fechtmann	Abuse: Police Officer Brian Fechtmann refused to provide his name and shield number to § 87(2)(b)	§ 87(2)(b)
D.POM Edward Theriault	Abuse: Police Officer Edward Theriault refused to provide his name and shield number to § 87(2)(b)	§ 87(2)(b)
E.POM Matthew Zappia	Abuse: Police Officer Matthew Zappia refused to provide his name and shield number to § 87(2)(b)	§ 87(2)(b)

Case Summary

On August 14, 2017, § 87(2)(b) filed this complaint with the CCRB by phone.

On August 13, 2017 at 11:16 p.m., PO Brian Fechtmann, PO Edward Theriault, PO Matthew Zappia, and PO Javier Rios of the 101st Precinct responded to a family dispute at § 87(2)(b) in Queens. When they arrived on scene, they were approached by § 87(2)(b) who informed them that she had been assaulted by the father of her child, § 87(2)(b) who had since gone into § 87(2)(b) down the road. The officers went to § 87(2)(b) and knocked on the door. § 87(2)(b) answered the door, but refused to come out. After several minutes the officers decided to take § 87(2)(b)'s complaint report and leave. While PO Fechtmann was taking the complaint report, § 87(2)(b) came out of § 87(2)(b) to ask the officers why they were there. PO Theriault allegedly instructed § 87(2)(b) "Tell § 87(2)(b) to come out. If he doesn't come outside I'm going to kick in your door" (**Allegation A**). Shortly thereafter, § 87(2)(b) came outside. After he was placed under arrest, his mother, § 87(2)(b) arrived on scene. As § 87(2)(b) tried to approach § 87(2)(b) PO Fechtmann allegedly pushed her (**Allegation B**). The officers then placed § 87(2)(b) in the car and proceeded to leave. § 87(2)(b) asked PO Fechtmann, PO Theriault, and PO Zappia for their names and shield numbers, which they allegedly did not provide (**Allegations C, D, and E**).

There was no video footage capturing this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of November 9, 2017, a notice of claim has not been filed by § 87(2)(b) (Board Review #3).
- As of November 9, 2017, a notice of claim has not been filed by § 87(2)(b) (Board Review #4).

Civilian and Officer CCRB Histories

- PO Fechtmann has been a Member of Service for four years. He has been a subject in one previous complaint, totaling two allegations, with no substantiated allegations. § 87(2)(g) (Board Review #5).
- PO Theriault has been a Member of Service for twelve years. He has been a subject in one previous complaint, totaling two allegations, with no substantiated allegations. § 87(2)(g) (Board Review #6).

- PO Zappia has been a Member of Service for seven years. He has been a subject in five previous complaints, totaling thirteen allegations, with no substantiated allegations. § 87(2)(g) (Board Review #7).
- This is § 87(2)(b)'s first CCRB complaint (Board Review #8).
- This is § 87(2)(b)'s first CCRB complaint (Board Review #9).

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(b) stated that after § 87(2)(b) was placed in handcuffs, he was frisked and searched. § 87(2)(g)

§ 87(2)(b) .

During her CCRB interview, § 87(2)(b) said that after the incident, she learned from a friend, whose name and contact information she refused to provide both during her in-person and subsequent phone statement, that during the incident, officers told § 87(2)(b)'s friend that if § 87(2)(b) did not come out, they would kick in the door and shoot her dog. This allegation was not mentioned in § 87(2)(b)'s original CCRB complaint, or in any other civilian or officer statements. § 87(2)(g)

§ 87(2)(b) .

Allegation A – Abuse of Authority: Police Officer Edward Theriault threatened to damage § 87(2)(b)'s property.

It is undisputed that on August 13, 2017, PO Fechtmann and PO Theriault responded to a 911 call at § 87(2)(b) § 87(2)(g)

§ 87(2)(b) (Board Review #10) stated that she was coming downstairs when she noticed PO Fechtmann, PO Theriault, and PO Zappia standing outside her front door. § 87(2)(b) approached the officers, and asked them what was going on. PO Theriault told § 87(2)(b) to ask § 87(2)(b) to come outside. § 87(2)(b) noted that § 87(2)(b) was the father of her daughter, § 87(2)(b) and a friend. § 87(2)(b) does not live with § 87(2)(b) but was often there and had keys to the house. § 87(2)(b) told the officers she did not think § 87(2)(b) was there. At this time, § 87(2)(b) also saw § 87(2)(b)'s ex-girlfriend, § 87(2)(b) and her baby standing with three officers next to her neighbor's fence. § 87(2)(b) was yelling that § 87(2)(b) had her keys. § 87(2)(b) explained to the officers that she and § 87(2)(b) had issues and she was not supposed to be by her house. § 87(2)(b) asked the officers if they could remove § 87(2)(b) because she was standing and yelling. The officers ignored § 87(2)(b)'s request. PO Theriault told § 87(2)(b) "Tell § 87(2)(b) to come out. If he doesn't come outside I'm going to kick in your door." § 87(2)(b) asked PO Theriault what this was about, and he replied that § 87(2)(b) was guilty because he had hit § 87(2)(b) § 87(2)(b) went back into her house and informed § 87(2)(b) that the police were there and wanted him to come outside. § 87(2)(b) then went back outside, and § 87(2)(b) followed. § 87(2)(g)

In the 911 audio for EVENT #§ 87(2)(b) (Board Review #11) at <00:06> § 87(2)(b) yelling in background: She's calling every day, she needs to get the fuck out of here! At <00:14>

§ 87(2)(b) to 911 operator: Yes, I would like to make a report. There's a lady that was standing in front of my house. I would like someone to come and get her away from the front of my house. At <00:50> § 87(2)(b) yelling in background: Motherfucker standing in front of my house, calling the cops! At <01:08> § 87(2)(b) to 911 operator: It's a private house. It's a female. I know her name. It's § 87(2)(b) She's been standing in front of my house stalking me. At <01:52> § 87(2)(b) to 911 operator: No, I don't know who she is. She's been stalking me for a couple of months, sending me text messages and everything. Now she's saying that he's beating her up. This girl is acting like she's innocent. At <02:54> § 87(2)(b) to 911 operator: § 87(2)(b) provided her contact information. § 87(2)(b) continues to yell in the background at § 87(2)(b) At <03:57> Call ends.

§ 87(2)(b) (Board Review #12), in a detailed phone statement, stated that after being assaulted by § 87(2)(b) she called the police. When the police arrived, § 87(2)(b) was arrested in front of her. Other members of § 87(2)(b)'s family were present during the arrest. The police acted normally towards § 87(2)(b) family. The officers talked to them and explained what was going on. § 87(2)(b) did not see any officers push § 87(2)(b)'s mother.

PO Fechtmann (Board Review #14) stated that he responded to a call for a family dispute, and after arriving on scene, he saw § 87(2)(b) holding a young child. PO Fechtmann noted that he and PO Theriault were the first officers on scene, though eventually they were joined by PO Zappia and PO Rios. § 87(2)(b) said that § 87(2)(b) had attacked her and then gone into § 87(2)(b) where his family lived, a few houses down the block. The four officers then went to § 87(2)(b). § 87(2)(b) told the officers that § 87(2)(b) was wearing a hat, and a man wearing the hat described answered the door. The officers told § 87(2)(b) they were looking for someone named § 87(2)(b) because there was an incident outside with a woman and they were trying to find out what was going on. § 87(2)(b) refused to come outside and told the officers that there was not anyone named § 87(2)(b) and the officers had the wrong house. PO Fechtmann told § 87(2)(b) that they knew it was probably him they were looking for and again asked him to come outside. § 87(2)(b) against repeated it was not him and the officers had the wrong house. After a few minutes of trying to get § 87(2)(b) to come outside, the officers decided it was better to do the paperwork so § 87(2)(b) could go home and let the complaint be handled later on. PO Fechtmann stated that he did not threaten, and would never tell anyone that he would break down their door. The officers then went and stood by their cars. PO Fechtmann worked on the complaint report with § 87(2)(b). During this time, three females came out of the house. They were yelling and acting irate and called § 87(2)(b) a liar. PO Fechtmann was still focused on doing paperwork, and did not interact with the females. After a few minutes, § 87(2)(b) came outside of the house and told the officers that he was who they were looking for. After verifying with § 87(2)(b) that § 87(2)(b) was her child's father, he placed him under arrest for § 87(2)(b).

PO Theriault (Board Review #15) § 87(2)(g) asserted that the officers did not threaten to come into § 87(2)(b)'s house. He also added that the only thing standing between them and § 87(2)(b) was a screen door with glass, and if they had wanted to get him, they would not have had to break anything down. PO Theriault stated that after about five minutes § 87(2)(b) came out of the house unprompted. PO Theriault stated that

the officers never returned to the house and knocked on the door again. § 87(2)(b) told the officers that § 87(2)(b) wasn't there and they needed to get § 87(2)(b) away from the house. The officers continued taking § 87(2)(b)'s complaint report.

PO Zappia (Board Review #16) noted that he and PO Rios were backing PO Theriault and PO Fechtmann, who were the primary unit assigned to the job. § 87(2)(g)
§ 87(2)(b) PO Zappia noted that after § 87(2)(b) came out of the house, an officer, but he could not remember who, informed her that § 87(2)(b) was going to be placed under arrest either then or at a later date, and asked if she could speak to him and ask him to come out. § 87(2)(b) went back into the house, and at some point, § 87(2)(b) came back out. PO Zappia never heard any officers threaten to break down the door to retrieve § 87(2)(b).
§ 87(2)(b)

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Allegation B - Force: Police Officer Brian Fechtmann used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) called § 87(2)(b) and instructed her to come to § 87(2)(b).
§ 87(2)(b) Upon arrival, § 87(2)(b) attempted to approach § 87(2)(b) § 87(2)(g)
§ 87(2)(b)

§ 87(2)(b) (Board Review #17) said that she received a call from § 87(2)(b) saying that she needed to come to § 87(2)(b) because § 87(2)(b) was being arrested. As soon as § 87(2)(b) arrived, she saw § 87(2)(b) standing in the middle of the street further down the block with her baby at her side, as well as two marked police cars and three or four officers standing in front of § 87(2)(b)'s house. § 87(2)(b) was standing, handcuffed, in front of a police van. § 87(2)(b) who was standing about 100 feet away from § 87(2)(b) immediately began shouting at her and asking her why she was abusing the law. § 87(2)(b) began walking in front of the police car to get to § 87(2)(b). PO Fechtmann, approached § 87(2)(b) and grabbed her left arm with one hand, pushed her to the side, and instructed her, "Don't go over there." § 87(2)(b) told PO Fechtmann that she was not walking towards § 87(2)(b) but was instead going to see § 87(2)(b). She then continued walking towards § 87(2)(b) but PO Fechtmann followed her and told her not approach or speak to § 87(2)(b). He instructed her to move away. At this point, § 87(2)(b) was standing about five feet away from § 87(2)(b) and said, "No! I'm going over to my son . . . What do you mean I can't see him?" PO Fechtmann grabbed § 87(2)(b)'s left arm and pushed her as he said, "You can't go over there." § 87(2)(b) jerked her arm away and told PO Fechtmann to get away from her. PO Theriault, then pulled § 87(2)(b) to the side and explained to her why § 87(2)(b) was being arrested.

§ 87(2)(b) (Board Review #10) stated that § 87(2)(b) was standing against the car, with an officer on each side, when § 87(2)(b) arrived. § 87(2)(b) was asking what was going on and shouting at § 87(2)(b). § 87(2)(b) began to approach § 87(2)(b) and when she was about six feet away, PO Fechtmann, pushed her, causing her to nudge back a bit. § 87(2)(b) told

PO Fechtmann not to push her. He replied that she could not go by § 87(2)(b) The officers then put § 87(2)(b) in their car. In a follow up phone statement (Board Review #18), § 87(2)(b) § 87(2)(b) stated that officers pushed § 87(2)(b) in her upper body/shoulder area. She could not remember if they used both hands.

PO Fechtmann (Board Review #14) stated that after § 87(2)(b) was placed under arrest, § 87(2)(b) § 87(2)(b) came over and tried to grab onto him. PO Fechtmann could not remember exactly what she did or where she tried to touch § 87(2)(b) but stated that she was close enough that he felt that she was too close to § 87(2)(b) and the police. PO Fechtmann put his arm out straight to keep § 87(2)(b) separated from § 87(2)(b) He could not remember if his arm made physical contact with § 87(2)(b) but stated that she was not pushed in any way. He could not remember if § 87(2)(b) told him not to touch or push her. PO Fechtmann stated that he believed he only had to put his arm out once, but noted that at that point he was also focused on getting § 87(2)(b) into the car.

PO Theriault (Board Review #15) stated that he remembered § 87(2)(b) s mother come on scene, but did not see her try to speak to § 87(2)(b) or § 87(2)(b) He did not see PO Fechtmann make any contact with her. § 87(2)(b) came up to the police car and was standing about two to three feet away from it. PO Theriault told her that she could not go over and asked her to back up and come speak to him so he could tell her what was going on. PO Theriault then spoke to § 87(2)(b) one-one-one and explained to her that the officers had to arrest § 87(2)(b) because of § 87(2)(b) s complaint. He noted that § 87(2)(b) was very receptive to the information.

PO Zappia (Board Review #16) stated that after § 87(2)(b) was arrested, § 87(2)(b) pulled up to the house, exited her vehicle and stood there. PO Zappia did not see any officers make physical contact with her.

NY Penal Code §195.05 states that a person is guilty of obstructing governmental administration when he prevents or attempts to prevent a public servant from performing an official function by means of intimidation, physical force or interference (Board Review #19). Patrol Guide Procedure 221-02 (11(a)), states that uniformed members of the service at the scene of a police incident should “apply no more than reasonable force necessary to gain control” (Board Review #20).

§ 87(2)(g)
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Allegation C – Abuse of Authority: Police Officer Brian Fechtmann refused to provide his name and shield number to § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Edward Theriault refused to provide his name and shield number to § 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Matthew Zappia refused to provide his name and shield number to § 87(2)(b)

It is undisputed that § 87(2)(b) collectively asked the three officers for their name and shield numbers. § 87(2)(g)

§ 87(2)(b) (Board Review #10) stated that she collectively asked the officers, “Can we have your name and badge numbers?” They refused to give her any information and got in the car. In her follow up phone statement (Board Review #18), § 87(2)(b) noted that she asked the three officers standing directly in front of her for their name and shield numbers. § 87(2)(b) said she was six feet away when she made the request. At the time of her interview, § 87(2)(b) still did not know the officers’ names. § 87(2)(g)

§ 87(2)(b) (Board Review #17) said she heard § 87(2)(b) ask the officers for their names, but she did not know if the officers gave their shield numbers. She did, however, believe she heard one of the officers give their names. In her original phone statement (Board Review #21), § 87(2)(b) did not mention § 87(2)(b) asking the officers for their names or shield numbers.

§ 87(2)(b) (Board Review #12) stated she did not hear anyone ask the officers for their names and shield numbers.

PO Fechtmann (Board Review #14) stated that as he began to search § 87(2)(b) he heard the females become more irate. He heard someone yelling, “I want name and badge numbers, I want name and badge numbers.” At that point, the officers were trying to get § 87(2)(b) and § 87(2)(b) into the car and felt that it was unsafe to stay there and wanted to get them to the stationhouse. PO Fechtmann noted that the person asking for the name and shield number did not specifically address him and added that at the time, he was looking in the car and did not want to turn around and leave his prisoner. He then placed § 87(2)(b) in his car and left.

PO Theriault (Board Review #15) said he never heard § 87(2)(b) ask for the officers’ name and shield numbers. He stated that his shield number was visible on his uniform. He also noted that if § 87(2)(b) had asked for his name and shield number, he had business cards he could provide, or she could have written down the information. PO Theriault did not remember telling her his name or shield number.

PO Zappia (Board Review #16) also stated that he did not hear anyone yell and request the officers’ name and shield numbers. PO Zappia stated that if asked, he “definitely” would have provided the information.

Patrol Guide Procedure 203-09 states that officers must courteously and clearly state their rank, name, shield number, and command, or otherwise provide them, to anyone who requests it (Board Review #22).

§ 87(2)(g)

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date